

LAW EDGE

FILE RISK MANAGEMENT

Current File Position Across Live Matters **Immediate Testing Required**

Some of your current files will not withstand scrutiny.

This is determined by what is recorded on the file, not what was done.

This position exists across:

Litigation
Corporate and commercial
Property
Family
Private client
Employment

You do not know which of your current files are defensible.
Several of your existing files are already in this position.

These files are assessed under:

Negligence claims
Insurer audit
Regulatory review

These challenges arise after the event, when the file is the only evidence available.

At that point, the position cannot be corrected.
The outcome is already determined.

This is already resulting in lost revenue across your current files.

If this is not addressed, you will continue progressing files that cannot be defended.

This position already exists across your current files.
A review of your current files will identify immediate failure.

You do not know where this sits across your current files.

Introduction

A file must show the position clearly. In practice, it does not.

Each file must clearly show:

- What issue was identified
- What advice was given
- What risks were considered
- How the decision was reached

Across active matters, this is not clearly recorded.

Typical file records show:

- Outcomes without supporting reasoning
- Decisions without recorded alternatives
- Advice without evidence
- Progression without visible supervision

When the file is reviewed, the position cannot be followed from start to finish.

That is where the file fails.

A proportion of your current files already fall into this position. They are progressing within your firm now. You do not know which of these files will fail.

PARTNER EXPOSURE

Immediate Risk Position

**You are accountable when your files are tested under scrutiny.
The outcome sits with you. No one else.**

When tested, the file is the only evidence considered.

If the file does not clearly record:

- The advice
- The reasoning
- The decision

The position is not defensible.

This is already reducing recoverable time, lowering fees and driving settlement below value. This cannot be identified through internal review.

This is already occurring across matters under your supervision. Revenue loss is already occurring.

You are responsible for the outcome on those files, whether the position is visible or not.

You do not know where this sits across your current files.

This is not a future risk. It is the current position across live matters under your control.

FILE REVIEW

Current Position

Your current file position cannot be established through internal review.

It is only established when your files are tested against a defined defensibility position.

This is the only way to establish that position.

A structured file review is applied across a defined sample of live matters.

Files are tested at partner level to determine:

- Which files are defensible
- Where positions fail under scrutiny
- Where financial exposure and revenue loss already exist

This reflects how your files will be assessed when challenged by an insurer, claimant or regulator.

The result is a clear view of:

- Which files can be supported
- Which require correction
- Where loss is already occurring

Typical scope: £5,000 - £10,000 depending on file volume.

This establishes the baseline for ongoing file risk control.

This must now be tested across your current files. There is no other way to establish your position.

Without this, your current exposure remains unknown.